

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF AKHTYAMOV AND OTHERS v. RUSSIA

(Applications nos. 17105/18 and 8 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

In the case of Akhtyamov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 OF THE CONVENTION

6. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...

> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ..."

7. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

8. Having examined all the material submitted to it and having dismissed the Government's objection of non-exhaustion (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by the Russian law. It concludes that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants' arrest and detention were not "in accordance with a procedure prescribed by law".

9. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies; *Novikova and Others*

v. Russia, nos. 25501/07 and 4 others, 26 April 2016, concerning disproportionate measures taken by the authorities against participants of solo manifestations; *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, concerning lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention).

11. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses.

IV. REMAINING COMPLAINTS

12. In applications nos. 33869/18 and 1683/20, the applicants also raised other complaints under various provisions of the Convention.

13. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], no. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table.

16. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses and *decides* that the remainder of applications nos. 33869/18 and 1683/20 is inadmissible;

3. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under well-established case-law of the Court (see the appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	17105/18 02/04/2018	**Vadim Tagirovich AKHTYAMOV** 1993	Memorial Human Rights Centre Moscow	26/03/2017, 6:00 p.m.	27/03/2017 2:00 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Anti-corruption meeting on Pushkinskaya square, Moscow on 26/03/2017. Conviction under Article 20.2 § 5 of CAO with fine of RUB 15,000. Moscow City Court, 04/10/2017	3,900
2.	33869/18 25/06/2018	**Aleksandr Aleksandrovich AGEYEV** 1989	Charskiy Vladimir Valentinovich Saratov	07/11/2017	08/11/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, fine of RUB 20,000, 25/12/2017, Saratov Regional Court; Art. 10 (1) - disproportionate measures against solo demonstrators - Solo student protest in Saratov on 04/09/2017, charges under Article 20.2 § 1, fine of RUB 20,000 (final domestic decision - Saratov Regional Court, 25/12/2017); Art. 11 (2) - disproportionate measures against organisers and participants of public	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							assemblies - in respect of the public event of 05/05/2018 (rally 'For the right to be a Russian citizen'); final decision on the matter was taken by the Saratov Regional Court on 04/09/2018; Article 20.2 § 5 of CAO; fine of RUB 15,000 imposed.	
3.	64938/19 18/12/2019	**Viktor Aleksandrovich UMANSKIY** 1993	Memorial Human Rights Centre Moscow	27/07/2019, 4:30 p.m.	28/07/2019, 0:05 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO (*Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 15,000. Moscow City Court, 10/09/2019.	3,900
4.	1683/20 27/12/2019	**Mikhail Vadimovich BYKANOV** 1987	Memorial Human Rights Centre Moscow	27/07/2019, 7:55 p.m.	29/07/2019 9:30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above). Detention as an administrative suspect: beyond the 48-hour statutory period (Art. 27.5(3)-(4) and Art. 29.6(4) CAO) (*Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 6.1 of CAO with fine of RUB 10,000. Moscow City Court, 04/09/2019.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	14504/20 04/03/2020	**Anton Yuriyevich NYUCHEV** 1983	Memorial Human Rights Centre Moscow	27/07/2019, 9.40 p.m.	28/07/2019, 3.50 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under Article 20.2 § 5 of CAO; fine of RUB 12,000; final - Moscow City Court, 04/09/2019.	3,900
6.	17615/20 16/03/2020	**Dmitriy Andreyevich BOLSHAKOV** 1999	Memorial Human Rights Centre Moscow	27/07/2019, 5.00 p.m.	28/07/2019, 12.00 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above); Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under article 20.2 § 5 of CAO: fine of RUB 10,000; final - Moscow City Court, 16/09/2019.	3,900
7.	1176/21 12/12/2020	**Angelina Nikolayevna YUGANOVA** 1972	Gilmanov Mansur Idrisovich Podolsk	03/07/2020, 10.50 p.m.	04/07/2020, 12.05 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above);	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - fine of RUB 10,000, 14/10/2020, Moscow City Court, Art. 10 (1) - disproportionate measures against solo demonstrators - Solo demonstration in Moscow, in front of the	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above, §§ 121-22).	FSB headquarters, 03/07/2020, in support of a journalist Svetlana Prokopyeva, charges under article 20.2 § 5 of CAO, fine of RUB 10,000. Final domestic decision - 14/10/2020 Moscow City Court.	
8.	13168/21 11/02/2021	**Marina Yuryevna CHUPRAKOVA** 1969	Mikhaylova Varvara Dmitriyevna St Petersburg	15/03/2020	15/03/2020	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - no. 926/08, 20 September 2016, (Karelin, cited above); Art. 10 (1) - disproportionate measures against solo demonstrators - Solo demonstration in Senatskaya square, St Petersburg, on 15/03/2020 (Protest against amendments to the Constitution), charges under article 20.2 § 5 of CAO, fine of RUB 10,000. Final domestic decision - 01/09/2020, St Petersburg City Court. Rotation - event classified as assembly post facto.	3,900
9.	26424/21 19/04/2021	**Nikita Yevgenyevich GIRIN** 1990		02/02/2021	03/02/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 see *and Others*, cited above, §§ 121-22);	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in respect of the proceedings which ended on 26/10/2020 and 10/02/2021. The final decisions were taken by the Moscow City Court on the dates indicated. The applicant was found liable of an administrative offence and sentenced to a fine and an administrative arrest, respectively; Art. 10 (1) - disproportionate measures against solo demonstrators - Solo	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (*Korneyeva*, cited above, § 35).	demonstration in support of I. Safronov in Moscow in front of the FSB headquarters on 07/07/2020, charges under article 20.2 § 5 of CAO, fine of RUB 10,000. Final domestic decision - Moscow City Court, 26/10/2020. rotation - event classified as assembly post facto; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of A. Navalnyy on 02/02/2021, 14-days administrative detention, article 20.2 § 8 of CAO, Moscow City Court 10/02/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate enforcement ordered by the first-instance court (final - 10/02/2021, Moscow City Court).	

[1] Plus any tax that may be chargeable to the applicants.